

FILINGS OF RECORD UNDER PUBLIC-LAND LAWS, ETC.

LETTER

FROM

THE SECRETARY OF THE INTERIOR,

TRANSMITTING,

PURSUANT TO SENATE RESOLUTION NO. 78, A COPY OF A REPORT BY THE COMMISSIONER OF THE GENERAL LAND OFFICE WITH RESPECT TO THE TOTAL NUMBER OF ENTRIES OF LAND UNDER EACH OF THE RESPECTIVE LAND LAWS UNDER SUSPENSION ON DECEMBER 31, 1905, BY REASON OF ORDERS OF SUSPENSION THERETOFORE MADE BY THE SECRETARY OF THE INTERIOR, ETC., AND THE AGGREGATE ACREAGE EMBRACED.

MARCH 9, 1906.—Referred to the Committee on Public Lands and ordered to be printed.

DEPARTMENT OF THE INTERIOR,
Washington, March 7, 1906.

SIR: I have the honor to acknowledge the receipt of a resolution of the Senate, dated February 13, 1906, as follows:

Resolved, That the Secretary of the Interior be, and is hereby, directed to furnish for the use of the Senate a complete statement as of date December 31, 1905, by land-office districts, of the total number of filings of record under each of the public-land laws, in sections, from which the respective local land officers were on said date under instructions not to receive final proofs.

Second. The total number of entries of land under each of the respective public-land laws under suspension on December 31, 1905, by reason of orders of suspension theretofore made by him or under his direction.

Third. The aggregate acreage embraced in the filings and entries aforesaid.

In compliance with the direction in the resolution, I transmit herewith copy of a report thereon by the Commissioner of the General Land Office, dated the 5th instant, furnishing the data required in the second and third paragraphs of the resolution as nearly as may be approximated, and stating that his office knows of no instructions in effect December 31, 1905, whereby any local land officers were directed not to receive final proofs.

Very respectfully,

E. A. HITCHCOCK, *Secretary.*

DEPARTMENT OF THE INTERIOR,
GENERAL LAND OFFICE,
Washington, D. C., March 5, 1906.

SIR: I am in receipt, by your reference of February 15, 1906, for early report in duplicate, with return of paper, of Senate resolution of February 13, 1906, directing you to furnish for the use of the Senate—

A complete statement as of date of December 31, 1905, by land-office districts of the total number of filings of record under each of the public-land laws, in sections, from which the respective local land officers were on said date under instructions not to receive final proofs.

Second. The total number of entries of land under each of the respective public-land laws under suspension on December 31, 1905, by reason of orders of suspension theretofore made by him, or under his direction.

Third. The aggregate acreage embraced in the filings and entries aforesaid.

This office knows of no instructions in effect December 31, 1905, whereby any local land officers were directed not to receive final proofs. The circular of December 7, 1905, addressed to registers and receivers, consisting of paragraphs taken from the Manual of Instructions to Special Agents, approved August 30, 1905, governs the local officers in acting upon final proofs. Said circular directs that proofs found to be in themselves insufficient be rejected under the rules, and that proofs sufficient upon their face, but as to the bona fides of which the local officers are not satisfied, be forwarded to this office without action, and a statement of facts sent to the special agent of this office in charge of the district for investigation. The circular is a compendium of the rules theretofore followed in acting upon final proofs and contains nothing that would warrant a refusal to accept a proof.

Second. As nearly as may be approximated there were under suspension December 31, 1905, by reason of general orders of suspension, under the homestead law, 5,787 entries; under the desert-land law, 4,349 entries; under the timber and stone law, 5,586 entries; under the timber-culture law, 220 entries; under the lieu-selection law (act of June 4, 1897, 30 Stat. L., 36), 48 lieu selections; under the preemption law, 2 entries; sales of isolated tracts, 328 entries.

Third. The aggregate acreage embraced in said entries and filings is 2,721,865 acres, approximately.

I might add that on January 18, 1906, you concurred in the recommendation of this Office that the order of March 15, 1905, withholding from patent all entries and selection for lands in the State of Oregon be revoked. Pursuant thereto the entries affected by said order of March 15, 1905, which compose a large proportion of the timber and stone and homestead entries above enumerated, are being passed to patent in the regular order of business.

The paper referred by you is herewith returned.

Very respectfully,

W. A. RICHARDS,
Commissioner.

The SECRETARY OF THE INTERIOR.